

Rules for the Administration of Justice and Police in the Khasi and Jaintia Hills, 1937

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State of Meghalaya - Act

Rules for the Administration of Justice and Police in the Khasi and Jaintia Hills, 1937

MEGHALAYA

India

Rules for the Administration of Justice and Police in the Khasi and Jaintia Hills, 1937

Act 6 of 1972

Published on 29 March 1937

Commenced on 29 March 1937

[This is the version of this document as it was from 24 April 1972 to None.]

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The Meghalaya Criminal Law (Amendment) Act, 1972

Meghalaya Act 6 of 1972

Last Updated 19th February, 2020

(As passed by the Assembly)

Published in the Gazette of Meghalaya, Extraordinary, dated 24th April, 1972.

[Received the assent of the Governor on the 23rd April, 1972]

An Act to amend the Rules for the Administration of Justice and Police in the Khasi and Jaintia Hills of the State of Meghalaya hereinafter referred to as the principal rules and matters ancillary thereto

Be it enacted by the Legislature of Meghalaya in the Twenty-third Year of the Republic of India as follows:

1.

Short title, extent and commencement.

(1)

This Act may be called the Meghalaya Criminal Law (Amendment) Act, 1972.

(2)

It shall have the like extent and the Principal Rules.

(3)

It shall be deemed to have come into force on the 22nd day of February, 1972.

2.

Amendment of the principal Rules.

- The Rules for the Administration of Justice and Police in the Khasi and Jaintia Hills, stand amended as follows:

(1)

In Rule 1, for the words, "the United Khasi-Jaintia Hills District", the words, "the Khasi Hills District and the Jaintia Hills District" shall be substituted.

(2)

In the principal Rules, for the words "the Khasi and Jaintia Hills", wherever they occur, the words, "the Khasi Hills District and Jaintia Hills District" shall be substituted.

(3)

In Rules 6 and 33 of the principal Rules, the words "and the Sub-divisional Officer, Jowai" shall be deleted.

3.

Deletion of sub-section (3) of Section 2 of Assam Act 14 of 1960.

- Sub-section (3) of Section 2 of the Assam Autonomous Districts Administration of Justice Act, 1960 as amended by the Assam Act 12 of 1968 shall be deleted.

4.

Assimilation of Laws.

- All laws which immediately before the coming into force of this Act, in force in the United Khasi-Jaintia Hills District, shall continue to be in force in the Khasi Hills District and the Jaintia Hills District:

Provided that except where the context otherwise requires all references therein to the Deputy Commissioner, Additional Deputy Commissioner or Assistant to the Deputy Commissioner of the United Khasi-Jaintia Hills District, Sub-divisional Officer, Jowai, as the case may be, shall be read as referring respectively to the Deputy Commissioner, Additional Deputy Commissioner, or Assistant to the Deputy Commissioner of the Khasi Hills District and the Jaintia Hills Districts; Provided further that every case, suit, appeal, application for revision proceedings or other business relating to both civil and criminal justice pending before the Court of Deputy Commissioner, Additional Deputy Commissioner or Assistant to the Deputy Commissioner, United Khasi and Jaintia Hills District or before the Court of Sub-divisional Officer, Jowai, as the case may be, shall be transferred or deemed to have been transferred for disposal to the Court of Deputy Commissioner, Additional Deputy Commissioner or Assistant to the Deputy Commissioner, the Khasi Hills District and the Jaintia Hills District, as the case may be, which would have been the competent authority to entertain and dispose of such case, suit, appeal, application for revision, proceedings or other business, had this Act been in force on the date of the institution and commencement of the same; and the latter court or courts shall deal with and dispose of the same in accordance with law.

5.

Power to remove difficulty.

- If any difficulty arises in giving effect to the provisions of this Act, the Governor may, by order, do anything not inconsistent with such provisions which appears to him to be necessary or expedient for the purposes of removing the difficulty.

6.

Repeal of the Meghalaya Ordinance 6 of 1972.

- The Meghalaya Criminal Law (Amendment) Ordinance, 1972 is hereby repealed.

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